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Case Number: 25VECV04414 Hearing Date: July 8, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JASMINE MICHELLE MURO,

Plaintiff,

vs.

HYUNDAI MOTOR AMERICA, a corporation;
and DOES 1 through 20, inclusive.

Defendants.

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CASE NO.: 25VECV04414

ORDER

GRANTING DEFENDANT'S MOTION TO COMPEL ARBITRATION

I.

BACKGROUND

This is a lemon law case

arising out of Plaintiff Jasmine Michelle Muro's ("Plaintiff") acquisition of a

2023 Hyundai Sonata Hybrid ("Subject Vehicle") manufactured by Defendant

Hyundai Motor America ("Hyundai"). (See Compl., ¶ 5.) Plaintiff's

Complaint alleges: (1) Violation of the Song- Beverly Consumer Warranty Act - Breach

of Implied Warranty of Merchantability; (2) Violation of the Song- Beverly

Consumer Warranty Act - Breach of Express Warranty; and (3) Breach of Civil Code

section 1793.2(b). Hyundai now moves to compel arbitration.

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II.

PROCEDURAL

HISTORY

On August 6,

2025, Plaintiff filed a Complaint.

On January
21, 2026, Hyundai filed a Motion to Compel Arbitration.

On January 21,
2026, Hyundai also filed its Request for Judicial Notice and supporting
declarations.

On February
23, 2026, the Court granted Plaintiff's attorneys' motion to be relieved as
counsel.

On July 1,
2026, Hyundai filed a Notice of Non-Opposition.

III.

LEGAL STANDARD

"The party
seeking to compel arbitration bears the burden of proving the existence of a
valid arbitration agreement." (*Avila v. Southern Cal. Specialty Care, Inc.* (2018)
20 Cal.App.5th 835, 844.)

"California
courts traditionally have maintained a strong preference for arbitration...To
this end, arbitration agreements should be liberally construed, ... with doubts
concerning the scope of arbitrable issues being resolved in favor of
arbitration." (*Market Ins. Corp. v. Integrity Ins. Co.* (1987) 188
Cal.App.3d 1095, 1098 (cleaned up).) "This strong policy has resulted in the
general rule that arbitration should be upheld unless it can be said with
assurance that an arbitration clause is not susceptible to an interpretation
covering the asserted dispute.... It seems clear that the burden must fall upon
the party opposing arbitration to demonstrate that an arbitration clause cannot
be interpreted to require arbitration of the dispute." (*Bono v. David*
(2007) 147 Cal.App.4th 1055, 1062 (cleaned up).)

California
law incorporates many of the basic policy objectives contained in the Federal
Arbitration Act ("FAA"), including a presumption in favor of arbitrability. (See
Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 971-972.) Accordingly,

under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (See *Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The Court is empowered by Code of Civil Procedure § 1281.2[1] to compel parties to arbitrate disputes pursuant to an agreement to do so.❧❧❧

The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (See *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.)

In deciding a motion to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine whether the claims are covered within the scope of the agreement. (See *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

IV.

ANALYSIS

A.

Judicial Notice

The Court

denies Hyundai's request for judicial notice of Plaintiff's Complaint because judicial notice is not required of matters already in an instant case's docket. The Court also denies the request as to the 2023 Owner's Handbook and Warranty Information because the Court considers that document as an exhibit to the Declaration of Anthony Goel.

B.

Existence and Scope of Arbitration Agreement

The moving

party can meet its initial burden of proving the existence of an arbitration agreement by attaching a copy of the Agreement to this motion bearing the signature of the opposing party. (See *Bannister v. Marinidence Opco*,

LLC (2021) 64 Cal.App.5th 541, 541-43 [“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent’s signature.”].)

Alternatively, the moving party can meet its initial burden by setting forth the agreement’s provisions in the motion. (See Rules of Court, rule 3.1330; see also *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal. App. 5th 158, 165.) The evidence must be sufficient to create a factual dispute to shift the burden back to the arbitration proponent who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (See *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Hyundai’s motion relies on two separate purported arbitration agreements: the 2023 Owner’s Handbook and Warranty Information and the Bluelink Connected Services Agreement. Due to the Warranty, the Court will grant the Motion.

1.

Warranty

a.

Existence of Agreement

First,

Hyundai relies on Hyundai’s express written warranty (“Warranty”) that accompanied the sale of Plaintiff’s vehicle. Hyundai contends Plaintiff is bound by an arbitration provision contained in the 2023 Owner’s Handbook and Warranty Information (“Warranty”) that purportedly accompanied the purchase of the Vehicle. (Goel Decl., ¶¶ 5-7.) Hyundai attaches a copy of the Warranty. (See Declaration of Anthony Goel filed on January 21, 2026 (“Goel Decl.”), ¶ 7, Ex. E at 9-15.) In relevant part, the Warranty’s “Arbitration Agreement” states:

BINDING ARBITRATION FOR CALIFORNIA

VEHICLES ONLY...

If you

purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules.

...

We will pay

all fees for any arbitration except for the initial filing fee of \$200. The arbitration will be held in the city or county of your residence.

...

BY

USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS...

(Id.)

Hyundai

argues arbitration under the Warranty is appropriate because Plaintiff brings her claims pursuant to Hyundai's warranty. (See Mot. at 10:6-18.) Additionally, Hyundai argues Plaintiff is bound by the Warranty's arbitration provision

because Plaintiff accepted benefits under the Warranty by having repairs performed under the Warranty before filing suit.

The Court

finds arbitration is appropriate pursuant to the Warranty on grounds of equitable estoppel. First, express warranties are contractual in nature. (See *Hauter v. Zogarts* (1975) 14 Cal.3d 104, 117.) Next, “Equitable estoppel is an old and versatile idea: you cannot take advantage of your own wrong.” (Turner v. Billagram (1852) 2 Cal. 520, 522; cf. *Godeffroy v. Caldwell* (1852) 2 Cal. 489, 492 [one who knowingly and silently permits another to spend money upon land, under a mistaken impression that he has title, will not then be permitted to set up his right]; *Hostler v. Hays* (1853) 3 Cal. 302, 306–307 [“The sense of estoppel is, that a man, for the sake of good faith and fair dealing, ought to be estopped from saying that to be false which, by his means, has become accredited for truth, and by his representations has led others to act.”].)” (*Hernandez v. Meridian Management Services, LLC* (2023) 87 Cal.App.5th 1214, 1219.) In addition, a “party may accept a contract by conduct, as well as by words.” (*Cavalry SPV 1, LLC v. Watkins* (2019) 36 Cal.App.5th 1070, 1081.)

Here,

Plaintiff has sued under Hyundai’s warranties, and Hyundai separately seeks to compel arbitration under both the Warranty’s arbitration provision and the Bluelink Connected Services Agreement. The Warranty states in bold capitalized font: BY

USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. (See *Goel Decl.*, ¶ 13, Ex. E at 14.) Plaintiff brings claims arising from Hyundai’s warranties and alleges that she repeatedly presented the vehicle to Hyundai’s authorized service facility for warranty repairs. (See *Compl.*, ¶¶ 7–9, 27–29, 36–39.) Hyundai’s Warranty claim history further reflects that repairs were performed under the new vehicle limited warranty at an authorized Hyundai dealership in February and March 2025. (*Goel Decl.*, ¶ 19, Ex. F.) By seeking and accepting the benefits of the Warranty and is estopped from denying the enforceability of its arbitration provision.

Hyundai has

thus shown the existence of a valid arbitration agreement.

b.

Scope of Agreement

Hyundai

argues Plaintiff's claims are covered by the scope of the Arbitration Agreement contained in the Warranty. (See Mot. at 12.) The Court agrees. Plaintiff's Song-Beverly claims fall within the scope of the Warranty's Arbitration Agreement requiring "any claim or disputes...related to or arising out of your vehicle purchase...the performance of the vehicle, any service relating to the vehicle, the vehicle warranty..." to be arbitrated.

Thus, the

Court finds Plaintiff's claims are covered within the scope of the Arbitration Agreement.

2.

CSA

a.

Existence of Agreement

Alternatively,

Hyundai relies on an arbitration provision within Hyundai's Bluelink Connected Services Agreement ("CSA") which "refers to an optional Connected Services system that includes various functions and features such as remote start with climate control, remote door lock and unlock, remote car finder, on-demand diagnostics and alerts, enhanced roadside assistance, and automatic emergency assistance." (See Declaration of Vijay Rao filed January 21, 2026, ¶ 5.) Hyundai attaches a copy of the CSA containing the arbitration provision:

14C.

Binding Arbitration...IN THE UNLIKELY EVENT THAT THE APPROPRIATE CUSTOMER SERVICE DEPARTMENT IS UNABLE TO RESOLVE YOUR CONCERNS, WE EACH AGREE TO RESOLVE THOSE DISPUTES THROUGH BINDING ARBITRATION...

Arbitration

Agreement:

(a)

Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services,

Connected Services Systems, Service Plans, the Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for...to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law...The agreement to arbitrate otherwise includes, but is not limited to: claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; . . . [and] claims relating to the Vehicle for which you seek product or service support via the sites.

(Id.,
Ex. B, ¶ 14 ©(a).)

Mr. Rao

describes the CSA as an agreement related to connected car systems which include various functions and features. (See id., ¶ 5.) To enroll in Bluelink services, customers must agree to the CSA, which Hyundai makes available to every customer who enrolls in the Bluelink services plan through a dealer-assisted enrollment process. (Id. at ¶ 6.) Here, Rao declares “Plaintiff enrolled her Vehicle in Bluelink services on June 12, 2024 through the dealer Web portal using the dealer-assisted enrollment process” and “[w]hen new Bluelink services enrollees like Plaintiff activates Bluelink services through the Dealer-Assisted Enrollment process, they agree to the then-effective CSA...[t]o enroll, Plaintiff would have had to click the box to acknowledge that they ‘read and agree[d] to the Blue Link Terms & Conditions’ and then click the ‘Complete’ button.” (Id. at ¶¶ 7-8, 11.) Those “Terms & Conditions,” i.e., the CSA, include the foregoing provision related to arbitration. (See id., ¶ 10.) Thus, the Court finds Defendant has shown the existence of an Arbitration Agreement contained in the CSA.

b.
Scope of Agreement

The Court

finds although Hyundai shows Plaintiff assented to the CSA, the CSA does not apply to this dispute. The CSA contemplates services and systems related to communication and digital features, not general warrantable issues involving alleged engine, hybrid power, electrical, or structural system defects. The CSA states:

“These Terms

and Conditions are the agreement between us regarding our provision of Connected Services to you... As used throughout this Agreement, [Connected Services] are the vehicle technology and service functions received as part of the enrollment in a Hyundai Bluelink or Genesis Connected Services Service Plan, including but not limited to:

.

Remote Service Activation

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Stolen Vehicle Recovery

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Enhanced Roadside Assistance

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SOS/ACN

.

POI Send-to-Car and Destination Search

.

Digital Key 2.0 Verizon Hotspot

.

Over the Air software updates...

Your Hyundai

or Genesis vehicle, [Vehicle] must come with an authorized Hyundai Bluelink or Genesis Connected Services telematics system [Connected Services System], which is the equipment, including hardware and software, used to provide Connected Services to the Vehicle.”

(Id.,

Ex. B, ¶ I.)

Here,

Plaintiff’s claims are statutory in nature and unrelated to the services and disputes contemplated by the CSA. Moreover, the CSA itself distinguishes

between the “Connected Services” it addresses and other issues that may be covered by Defendant’s warranty. The CSA disclaims all relation to a customer’s warranty agreement:

“10. NO

WARRANTIES. Warranties are special kinds of promises. THE VEHICLE’S LIMITED WARRANTY does not cover the Connected Services.”

(Id.,

Ex. B, ¶ 10.)

Further, as a

matter of contract interpretation, inclusion of “your Vehicle” in the arbitration clause (buried within an agreement specifically outlining terms and conditions for “Connected Services” that are not covered by Hyundai’s warranty) does not support any argument the parties reasonably intended such arbitration would govern disputes over warrantable defects. If they had, there would be no reason to include any of the other categories of disputes that would be subject to arbitration as they would be nothing more than surplusage, which courts are to avoid where possible. (See *VFLA Eventco, LLC v. William Morris Endeavor Entertainment, LLC* (2024) 100 Cal.App.5th 287, 297.) A more reasonable interpretation of the CSA’s arbitration clause is that it covers only disputes arising under or relating to the “Connected Services” governed by the agreement itself, and not Plaintiff’s warranty claims.

Thus,

Plaintiff’s claims are not within the scope of the CSA.

Accordingly,

the Court will only address unconscionability arguments as they pertain to the Warranty.

C.

Unconscionability

“[P]rocedural

and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 102.) The courts invoke a sliding

scale, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. (See *id.* at 114.) Plaintiff bears the burden of proving the provision at issue is both procedurally and substantively unconscionable.

1.

Procedural Unconscionability

“The

procedural element of unconscionability focuses on whether the contract is one of adhesion.” (Armendariz, 24 Cal.4th at p. 113; see also *Mercuro v.*

Superior Court (2002) 96 Cal.App.4th 167, 174.) “Procedural unconscionability focuses on the elements of oppression and surprise.

[Citations] ‘Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice ... Surprise involves the extent to which the terms of the bargain are hidden in a ‘prolix printed form’ drafted by a party in a superior bargaining position.’

[Citations]” (*Roman v. Superior Court* (2009) 172 Cal.App.4th 1462, 1469.)

Here,

Plaintiff filed no opposition and therefore does not argue the Arbitration agreement is procedurally unconscionable. Hyundai submits evidence Plaintiff had the option of opting out of the Arbitration Agreement without losing any warranty coverage, and that Plaintiff did not opt out. (Goel Decl., ¶¶ 14-15.)

The Court

finds procedural unconscionability is low. The “adhesive aspect of an agreement is not dispositive” and when there is no other indication of oppression other than the adhesive aspect of an agreement, the degree of procedural unconscionability is low. (See *Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704.) Accordingly, Plaintiff must show a high degree of substantive unconscionability to overcome a finding the arbitration provision is enforceable.

2.

Substantive Unconscionability

“Substantive

unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or "one-sided' results' [Citations] that is, whether contractual provisions reallocate risks in an objectively unreasonable or unexpected manner. [Citation] Substantive unconscionability 'may take various forms,' but typically is found in the employment context when the arbitration agreement is 'one-sided' in favor of the employer without sufficient justification, for example, when 'the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration.' [Citations]" (Roman, 172 Cal.App.4th at 1469-70.)

The Court

does not find the Arbitration Agreement is substantively unconscionable nor its terms to be "so one-sided as to 'shock the conscience.'" (See Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 246.) The Court finds the Arbitration Agreement provides for a neutral arbitrator. The terms of the Arbitration Agreement provide that the parties utilize American Arbitration Association and their Consumer Arbitration Rules. (See Armendariz, 24 Cal.4th 83, 102 [one requirement for lawful arbitration is that an agreement "provides for neutral arbitrators"].) The Court also finds the Arbitration Agreement does not require the parties to pay unreasonable costs and fees to access an arbitration forum. The terms provide that Hyundai "will pay all fees for any arbitration except for the initial filing fee of \$200." (See Armendariz, 24 Cal.4th 83, 102 [one requirement for lawful arbitration is that an agreement "does not require [parties] to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum"].) Plaintiff filed no opposition and presents no argument that the Arbitration Agreement is substantively unconscionable.

Because the Arbitration

Agreement is procedurally unconscionable to a low degree and is not substantively unconscionable, Hyundai can enforce the Arbitration Agreement.

The Court

therefore GRANTS Hyundai's Motion to Compel Arbitration.

V.

CONCLUSION

Based on the
foregoing, the Court GRANTS Hyundai's Motion to Compel Arbitration.

Accordingly,
the Court takes the Case Management Conference off calendar and sets the matter
for a Status Conference re: Arbitration on July 8, 2027, at 8:30 a.m. The
parties are ordered to file a Joint Status Update on or before July 1, 2027.

IT
IS SO ORDERED.

DATED: July 8, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.